

BEFORE THE PROCUREMENT REVIEW COMMITTEE

BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA

PRC APPEAL NO. 16/2026

M/S Daavi Construction Company
Spinzar Plaza, Angle Road Quetta

..... Appellant

VERSUS

1. Government of Baluchistan through its Chief Secretary, Civil Secretariat. Quetta
2. Chief Officer, Municipal Committee, Loralai
3. Chairman Grievance Redressal Committee, Balochistan Local Government Board

..... Respondents

Quorum

1. Mr. Habib Ur Rehman Jamot Chairman PRC
2. Mr. Mubashir Ali Khan (FCIPS) Member PRC (Author)
3. Engr. Junaid Shah Member PRC
4. Engr. Muhammad Ayub Nasir Technical member PRC
5. Mr. Abdul Hayee Advocate Private Member PRC

DECISION

Dated: 16-02-2026

Brief Facts of the Case

1. The instant appeal has been filed by the Appellant under Rule 56-A of the Balochistan Public Procurement Rules, 2014, challenging the Technical Evaluation Report dated 26-12-2025, issued in respect of TSE No. 252611916091 for the procurement of Backhoe Attachment by Municipal Committee, Loralai.
2. The Appellant, M/S Daavi Construction Company, is an incorporated and registered business entity with the Pakistan Engineering Council (PEC) under Category C-3/E and is engaged in construction works and general order supplies. In response to the Notice Inviting Tender (NIT) issued by the Respondent, the Appellant submitted its bid along with the required documents.
3. Vide Technical Evaluation Report dated 26-12-2025, the Appellant's bid was declared ineligible. Feeling aggrieved, the Appellant filed a complaint under BPP Rule 56, before the Complaint Redressal Committee (CRC) constituted under the BPP Rules, 2014. However, the said complaint remained unattended, and the statutory time period prescribed for decision elapsed, compelling the Appellant to invoke the jurisdiction of this Committee.
4. The record suggests that the Appellant was declared non-responsive on a single ground i.e. "submission of tempered documents" on two factors of eligibility assessment namely, (i) "similar projects and experience" (ii) "experience" as stated in the bid evaluation report published by the Respondent No. 2.
5. Respondent No. 2 filed a parawise reply raising serious allegations of misconduct, forgery, and fraudulent practices against the Appellant, including an incident of abusive behavior during the bid opening ceremony and fabrication of documents, which were denied by the Appellant.
6. The appeal was fixed for hearing before this Committee. Unfortunately, in the days subsequent to the filing of the appeal, the law and order situation in the province deteriorated to an unprecedented level. The prevailing environment of heightened

insecurity severely impaired the ability of this Committee to convene hearings in a timely manner.

7. During this period, this Committee received and considered requests for adjournment and extension of hearing dates submitted by both the Appellant and the Respondents. Mindful of the extraordinary circumstances, the Committee allowed these requests despite the consequent compromise upon the timeline stipulated under the Rules.
8. The delay, though regrettable, was neither occasioned by any lapse on the part of this Committee nor by the dilatory conduct of any party; rather, it was an unfortunate consequence of forces entirely extraneous to the adjudicatory process. The Committee now proceeds to render its findings.

Appellant's Contentions

9. The representative of the Appellant argued that the impugned act of the Respondent in disqualifying the Appellant's bid is arbitrary, unlawful, and without lawful justification
10. It was vehemently contended that the Appellant's bid was declared disqualified on the ground of submission of "tempered documents," yet no such documents were ever communicated to the Appellant nor were the Appellant ever afforded any opportunity of defense or hearing to explain its stance regarding the genuineness of its documents.
11. The Appellant emphasised that all documents submitted, including completion certificates and work orders issued by various government departments, are genuine, valid and lawfully issued, and that no manipulation, tempering or illegality was involved.
12. The Appellant denied all allegations of misconduct during the bid opening ceremony and maintained that its representative acted professionally at all times.
13. It was prayed that the impugned disqualification be set aside, the Appellant's documents be declared valid and lawful and directions be issued to the Respondent to consider the Appellant's bid on merit in accordance with the procurement rules.

Respondent's Contentions

14. The representative of the Municipal Committee, Loralai (Respondent No. 2), defended the impugned Technical Evaluation Report and raised serious objections to the maintainability of the appeal on factual and legal grounds.
15. It was contended that during the bid opening, the Appellant sent an Advocate, as its representative, who used abusive language with the Assistant Engineer and physically pushed a levies guard who intervened to control the situation. The representative later tendered an apology to avoid police action.
16. Regarding the disqualification, the Respondent contended that the Appellant had submitted forged and fabricated documents, including:
 - a. A completion certificate of Municipal Committee Shahragh purportedly signed by Mr. Bostan Khan, Ex-Chief Officer, dated 23rd November, 2025, whereas he had been transferred from Shahragh on 12th November, 2025, ten days prior to the issuance of the alleged certificate.
 - b. The handwriting on the said fake completion certificate matches the Appellant's own handwriting on an application dated 11-12-2025.
 - c. The Appellant self-generated documents of M/S Balochistan Tractor and Services and M/S Zamindar Tractors in his own Urdu writing, which matches the "delivery time" letter issued by the Appellant dated 12-12-2025.
17. The Respondent submitted that owing to these fabrications, the Bid Evaluation Report correctly mentioned "Tempered Documents" as the ground for rejection.
18. It was further contended that the Respondent had duly responded to the Appellant's complaint before the Complaint Redressal Committee (CRC) within the stipulated time and had also requested for blacklisting of the Appellant firm under BPP Rule 23.

19. It was prayed that the appeal be dismissed, the Appellant firm be blacklisted and criminal proceedings for forgery, fake documents, and fraudulent practices be initiated against the Appellant. Costs of travel from Loralai to Quetta were also prayed for.

Findings of the Committee

20. At the very outset, the Committee notes that the Respondent has split the procurement into five separate tenders, thereby averting the threshold of Rs. 5 million for electronic bidding. By this fragmentation, the Respondent has deprived 4 cases from the efficiencies and safeguards inherent in electronic bidding.
21. We have heard the parties at length and have perused the record available before us. The bone of contention in the present appeal is the ascertaining the veracity of the documents submitted by the Appellant in support of his bid. Upon examination of the eligibility criteria prescribed in the bidding documents, it is observed that both the factors on which the Appellant has been declared ineligible are more or less the same, i.e., determination of whether the participating bidders possess the required experience and technical capability to execute the contract.
22. The record reveals that the Respondent sought the provision of copies of 2 supply orders with relevant completion certificates for determination of the experience factor and for determination of the similar project completion factor, the Respondent required completion certificates of 3 similar assignments.
23. The Committee further examines the Respondent's objection regarding the Appellant's lack of experience in supplying the specific machinery items tendered. The Appellant has contended that since all varieties of such products including tractors, road line marking machines, sludge suckers and other implements are available with the same manufacturers and relate to the same industry sector, it is not necessary that a supplier must have previously supplied the exact same machine to be considered experienced or competent. This contention carries weight. The required core competencies supply chain management, warranty support, after-sales service and financial capacity, remain largely consistent across similar categories of equipment. To require a bidder to have supplied the precise machine in every instance would unduly restrict competition and defeat the object of value for money under the Procurement Legal Framework. A company having successfully fulfilled contractual obligations against one type of machinery shall be deemed competent for other contracts relating to the same category of machinery, equipment or implements, unless the bidding documents explicitly require a separate technical capability, which is presently not the case.
24. The Appellant attached with his bid certain documents in support of its experience and similar project completion. However, the Respondent has challenged the authenticity of the following documents, thereby leading to Appellant's ineligibility declaration:
- a. The completion certificate of Municipal Committee Shahragh issued in favor of the Appellant.
 - b. Document issued by M/S. Balochistan Tractor and Services; and
 - c. Document issued by M/S. Zamindar Tractors.
25. Prima facie, these are serious allegations, if so established, they would not only justify the disqualification of the Appellant but may also attract penal consequences under the applicable laws relating to fraud and forgery.
26. To ascertain the veracity of the disputed documents without prejudice to either party, the Registrar of this Committee sought verification from the issuing office, i.e., Municipal Committee Shahragh. The received response substantially supports the Appellant's stance regarding the genuineness of its documents vide letter No. MC/SHG 453/2026 dated 16th February 2026 states that:

"the Completion Certificates issued against Supply Order No.335-36 and Supply Order No.337-38 were duly issued by this office and are original, unchanged and valid."

Additionally, the same office vide letter No. MC/SHG 450/2026 dated 11th February 2026 has confirmed to the Director Technical, Balochistan Local Government Board that:

"no evidence or complaint has been found against M/S Daavi Construction Company regarding submission of tempered/fake experience or completion certificates....."

27. The Respondent's stance that the concerned officer (Bostan Khan) was posted out from Municipal Committee Shahragh at the time of issuance of the completion certificate does not carry weight. The concerned office has duly assented to the fulfilment of the contractual obligations of the Appellant through issuance of the completion certificate. It is a settled principle that government officers exercise power by virtue of their office, and the official functioning of a government department is not bound to any individual. The verification received from Municipal Committee Shahragh, which is the competent authority, confirms the genuineness of the completion certificates, thereby rendering the objection irrelevant.
28. Upon examining the verification of the Shahragh completion report, the Respondent has effectively admitted that the Appellant's bid contains the required number of purchase orders and completion reports as required by the Respondent in the bidding document. This admission substantially weakens the Respondent's case regarding alleged deficiencies in the Appellant's experience and similar project completion criteria.
29. The Respondent's assertion that the Appellant could not justify the similar completed projects through the letters of M/S Balochistan Tractor and Services and M/S Zamindar Tractors is not maintainable, as the "completion report" was stated to be the required document for establishing experience and similar project completion, not such letters from private firms. The Respondent cannot introduce new requirements beyond those stipulated in the bidding documents at the evaluation stage. The Appellant having provided the required completion certificates, which now stand verified by the issuing authorities, the objection regarding dealership letters is unsustainable.
30. The allegations of misconduct by the Appellant's representative, even if proven, pertain to conduct and not to the technical responsiveness of the bid. The appropriate forum for addressing such matters is blacklisting proceedings under Rule 23, not rejection of the bid on technical grounds. The Committee disapproves of any unprofessional conduct but finds this cannot sustain the impugned disqualification.
31. The Complaint Redressal Committee failed to decide the complaint within the statutory period. This Committee views such delays with grave concern, as they defeat the very purpose of expeditious grievance redressal.
32. In light of the official verification from Municipal Committee Shahragh the allegation of document tempering stands fully rebutted. The Respondent's own verification confirms the Appellant's bid contains the required number of purchase orders and completion reports. The sole ground of "submission of tempered documents" no longer survives.
33. The Committee takes a very serious note of the fact that the contract was awarded during pendency of the Appellant's statutory grievance before the Complaint Redressal Committee or during the pendency of this appeal. Such conduct defeats the very purpose of the grievance redressal mechanism and renders the statutory remedy under Rule 56 and Rule 56-A worthless. Procuring agencies are required to act with fairness and restraint and not to frustrate the legal process by hastily concluding contracts while a bidder's challenge remains alive before a competent forum.

ORDER

for the foregoing reasons, this appeal is allowed in the following terms:

1. The impugned Technical Evaluation Report dated 26-12-2025 is hereby set aside.
2. Respondent No. 2 is directed to reevaluate the Appellant's bid on its merits within 3 days, treating the Appellant's completion certificates as genuine in light of the verification received.
3. The onus of all repercussions, financial or otherwise, arising from suspension of the said award shall rest squarely upon the officials responsible for this violation of procurement rules and the principles of natural justice.
4. The Respondent's prayer for blacklisting of the Appellant is rejected, without prejudice to any separate proceedings under BPP Rule 23 if independent grounds exist.
5. The Respondent's prayer for criminal proceedings against the Appellant is not entertained, as this Committee lacks criminal jurisdiction.
6. The Respondent's prayer for travel costs is rejected.
7. The CRC is directed to ensure compliance with statutory timelines in all future proceedings.

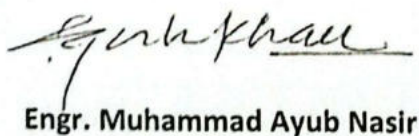

Habib Ur Rehman Jamot

Chairman
Government of Balochistan
Procurement Review Committee
(B-PPRA)

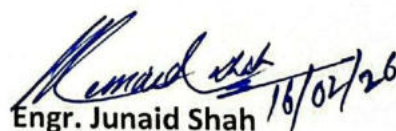
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Mubashir Ali Khan (FCIPS)

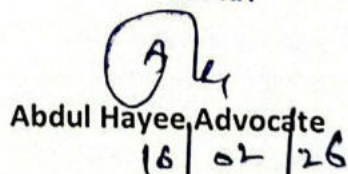
Member
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